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Criminal cases in CALIFORNIA - Assembly passes bill requiring prosecutors, judges to recognize costs of sentencing

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The California State Assembly passed assembly member Jesse Gabriel's (D-Woodland Hills) Assembly Bill (AB) 1474, which would require prosecutors and judges to consider the economic costs associated with lengthy criminal sentences.

The measure would require prosecutors during sentencing to state on the record the estimated cost of their recommended sentence and require judges to state the estimated cost of the sentence imposed. Estimates would be based on standardized cost calculations provided by the Department of Finance and the Board of State and Community Corrections.

There has been growing interest in how to reduce the excessive costs of state criminal justice systems, with efforts for reform gaining growing bipartisan support. California is no exception.

Both the legislature and the electorate have taken various actions to reduce the number of incarcerated people under the supervision of the California Department of Corrections and Rehabilitation (CDCR). Since the implementation of these policy changes, the state's incarcerated population has declined by nearly one-quarter and the parolee population by nearly one-half.

Despite this, CDCR spending has increased by over $3 billion, or approximately 30%, from about $9.7 billion in 2010 and 2011, to an estimated $13.3 billion in 2019 and 2020. California currently spends more on corrections than Texas and New York combined. A 2019 report by the California State Auditor found that CDCR had done little to verify the performance of its programs and suggested that it receive independent oversight to monitor its progress.

AB 1474 is modeled after successful protocols currently in practice by prosecutors in Pennsylvania and Virginia. In Philadelphia County and Loudon County, prosecutors state the estimated cost to taxpayers for the sentence they recommend.

"AB 1474 is an important step toward transparency in sentencing and the true cost of incarceration," Director of Smart Justice California, Anne Irwin said. "This bill will help judges impose more effective sentences that promote both public safety and community well-being by focusing attention on the economic and opportunity costs of lengthy incarceration. This cost transparency will lead to an overdue examination of whether we are getting a good return on our costly investment in incarceration."

AB 1474 is expected to be heard in Senate policy committees in the coming weeks.

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